

LEGISLATURE OF THE STATE OF IDAHO  
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1248

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO STATE APPELLATE PUBLIC DEFENDERS; PROVIDING LEGISLATIVE INTENT;  
REPEALING SECTION 19-5908, IDAHO CODE, RELATING TO CAPITAL CRIMES DE-  
FENSE FUND AUTHORIZED; AND DECLARING AN EMERGENCY AND PROVIDING AN EF-  
FECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. IDAHO CODE CLEANUP -- LEGISLATIVE INTENT. It is the intent  
of the Legislature to ensure that the state laws provided in Idaho Code are  
streamlined, up-to-date, and essential for the citizens of Idaho, while best  
serving the public health, safety, and welfare. In accordance with the Idaho  
Code Cleanup Act, following comprehensive review, the Legislature has iden-  
tified the provisions of this act as obsolete, outdated, or unnecessary.

SECTION 2. That Section [19-5908](#), Idaho Code, be, and the same is hereby  
repealed.

SECTION 3. An emergency existing therefor, which emergency is hereby  
declared to exist, this act shall be in full force and effect on and after  
July 1, 2026.